Charice Holtsclaw, Esq.
Washington Bar No. 53850
CHARICE HOLTSCLAW, ESQ.
4311 NW 80TH Terrace
Kansas City, MO 64151
Telephone: (816) 842-6700
Holtsclaw.law@gmail.com

David J. Schexnaydre, T.A., *Pro Hac Vice*
Louisiana Bar Roll #: 21073
2895 Highway 190 • Suite 212
Mandeville, Louisiana 70471
Telephone: (985) 292-2020
Facsimile: (985) 235-1089
david@schexnaydre.com

Attorneys for Plaintiffs

The Honorable Thomas O Rice

IN THE UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF WASHINGTON
AT SPOKANE

JANE ELIZABETH ROBERTS, *et al,*

Plaintiffs,

v.

SHRINERS HOSPITALS FOR CHILDREN, SHRINERS HOSPITALS FOR CHILDREN-SPOKANE, BEVERLY BOKOVITZ, FRANCES FARLEY, JERRY GANTT, JOHN McCABE, PHILLIP GRADY, PETER BREWER, AND GOV. JAY INSLEE

Defendants.

No. 2:23-CV-295-TOR

PLAINTIFFS' MOTION FOR LEAVE TO FILE SUR-REPLY

1/23/2024
Without Oral Argument

Plaintiffs, Jane Elizabeth Roberts, *et al*, move the Court for leave to file a short, limited Sur-Reply to address (1) Shriners Defendants' reference in their Reply Memorandum for the first time to CDC documents addressing marketing of COMIRNATY® and Pfizer-BioNTech COVID-19 Vaccine with "Pfizer only being able to begin branding and marketing Comirnaty following FDA approval" (Doc 37), (2) Defendants' citation to previously uncited case law as part of their argument that the two products are interchangeable, and (3) Defendants' citation to previously uncited case law in an effort to defeat Plaintiffs' PREP Act arguments.

Because of these new assertions, and after reviewing a hyperlink not previously disclosed to Plaintiffs, undersigned counsel located relevant government documents contradicting Shriners Defendants' assertions and showing that **Pfizer never manufactured COMIRNATY®**.

RESPECTFULLY SUBMITTED,

DATE: 1/22/24

SCHEXNAYDRE LAW FIRM

BY: /s/ *David J. Schexnaydre*
DAVID J. SCHEXNAYDRE, T.A.
Louisiana Bar Roll #: 21073
2895 Highway 190 • Suite 212
Mandeville, Louisiana 70471
Telephone: (985) 292-2020
Fax: (985) 235-1089
Email: david@schexnaydre.com
Lead Counsel for Plaintiffs-*Pro Hac Vice*

And

/s/ Charice Holtsclaw
CHARICE HOLTSCLAW, ESQ.
WSBA# 53850
301 Prospect St.
Bellingham, WA 98225
Phone: (360) 639-3393/(816) 842-6700
Email: holtsclaw.law@gmail.com
Local Counsel for Plaintiffs

CERTIFICATE OF SERVICE

I hereby certify that on this 22nd day of January, 2024, I presented the foregoing pleading to the Clerk of Court for filing and uploading to the CM/ECF system, which will send notification of such filing to all counsel of record.

/s/ David J. Schexnaydre
DAVID J. SCHEXNAYDRE